

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2025-000412

B E T W E E N:

R (HARRISON) V SECRETARY OF STATE FOR JUSTICE

APPELLANT'S CASE

Counsel: Phillippa Kaufmann KC; Tom Hickman (instructed by Bhatt Murphy Solicitors)

SUMMARY OF POSITION

1. The Appellant seeks to establish that the withdrawal of library access and restrictions on distance learning materials constitute a breach of Article 2 Protocol 1 ECHR (right to education). The Administrative Court found unlawful administrative action but held the threshold for A2P1 violation was not met.

FACTS RELIED ON

2. The Appellant is serving a determinate sentence at HMP Wandsworth and is enrolled in an Open University degree program in Social Sciences.
3. In September 2024, following security concerns, the prison Governor implemented restrictions preventing prisoners from receiving printed course materials exceeding 50 pages per month.
4. The Appellant's OU course requires access to textbooks and journal articles totaling approximately 800 pages per semester.
5. Library access was reduced from 3 hours weekly to 1 hour fortnightly due to staffing shortages.
6. The Respondent acknowledged these restrictions were not in accordance with Prison Service Instructions but argued they did not meet the threshold for A2P1 interference.

CONTENTIONS / GROUNDS OF APPEAL

7. The Administrative Court applied an incorrect legal threshold for A2P1 violations, requiring near-complete denial of education rather than substantial interference with educational rights.
8. The Strasbourg jurisprudence establishes that A2P1 is violated where there is unjustified substantial interference with access to education, not only total denial.
9. The judge erred by refusing to consider events post-dating the claim form when assessing an ongoing violation brought by way of judicial review.
10. The cumulative effect of restricted library access and the 50-page limit rendered effective participation in higher education impossible.

11. Education is integral to rehabilitation purposes of imprisonment and restrictions must be justified as necessary and proportionate.

LEGAL BASIS

12. The Appellant relies upon the following legal provisions:

- Human Rights Act 1998, s.6 (acts of public authorities)
- European Convention on Human Rights, Article 2 Protocol 1 (right to education)
- Prison Rules 1999, r.17 (education facilities)
- Prison Service Instruction 32/2012 (prisoner education)

RELIEF SOUGHT

13. The Appellant respectfully requests that this Honourable Court:

- (a) Allow the appeal.
- (b) Declare that the restrictions constitute a violation of Article 2 Protocol 1 ECHR.
- (c) Quash the Governor's decision implementing the 50-page monthly limit.
- (d) Order the Respondent to ensure adequate library access and remove unreasonable restrictions on educational materials.

AUTHORITIES CITED

- *Velyo Velev v Bulgaria* (App No 16032/07) ECHR 27 May 2014
- *Emine Arac v Turkey* (App No 9907/02) ECHR 23 September 2008
- *Irfan Temel and Others v Turkey* (App No 36458/02) ECHR 3 March 2009
- *R (Daly) v Secretary of State for the Home Department* [2001] UKHL 26
- *R (Osborn) v Parole Board* [2013] UKSC 61

CHRONOLOGY OF EVENTS

Date	Event
1 September 2023	Appellant enrolled in Open University BA Social Sciences degree
15 September 2024	Security incident at HMP Wandsworth leading to enhanced restrictions
22 September 2024	Governor implements 50-page monthly limit on printed materials
30 September 2024	Library access hours reduced from 3 hours weekly to 1 hour fortnightly
15 October 2024	Appellant submits internal complaint regarding educational restrictions
8 November 2024	Complaint rejected by Governor; adjudication confirms restrictions
2 December 2024	Pre-action protocol letter sent to Respondent
15 January 2025	Judicial review claim issued
18 March 2025	Substantive hearing before Foster J in Administrative Court
25 April 2025	Judgment finding unlawful administrative action but no A2P1 breach

15 May 2025

Permission to appeal granted by Nugee LJ

Filing Date: 2025-02-10

Phillippa Kaufmann KC